



A COMMUNITY OF CHOICE

## Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001  
(Phone) 307-637-6282 (Fax) 307-637-6366

### MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council  
From: Seth Lloyd  
Subject: UDC-22-00131 / 3173 Omaha Zone Change  
Date: May 9, 2022

---

#### Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/9/2022
- Public Services Committee 5/17/2022
- Second reading 5/23/2022
- Public Services Committee 6/7/2022
- Third and final reading 6/13/2022

#### Planning Commission Recommendation:

The Planning Commission heard this item at their May 2, 2022 meeting and recommended the Governing Body approve this application by a unanimous vote.

The Planning Commission Staff report is attached and has not been changed.

#### Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. \_\_\_\_\_

**ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM CB COMMUNITY BUSINESS TO MR MEDIUM-DENSITY RESIDENTIAL FOR LAND LOCATED SOUTHEAST OF THE INTERSECTION OF OMAHA ROAD AND PINE DRIVE.”**

**BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:**

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on May 2, 2022, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lot 1, Block 1, Potter Addition, Cheyenne, Wyoming, is hereby changed to MR Medium-density Residential.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

**FIRST READING:** \_\_\_\_\_

**SECOND READING:** \_\_\_\_\_

**THIRD AND FINAL READING:** \_\_\_\_\_

\_\_\_\_\_  
PATRICK COLLINS, MAYOR

(SEAL)  
ATTEST:

\_\_\_\_\_  
KRISTINA F. JONES, CITY CLERK  
publish date: \_\_\_\_\_



A COMMUNITY OF CHOICE

## Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

### CITY OF CHEYENNE PLANNING COMMISSION

MAY 2, 2022

#### STAFF REPORT

**FILE:** UDC-22-00131: 3173 Omaha – Zoning Map Amendment (zone change)

**REQUEST:** A request to rezone approximately 0.34 acres of land from CB Community Business to MR Medium-density Residential

**LOCATION:** Southeast of the intersection of Omaha Road and Pine Drive

**APPLICANT:** Meadowbrook Baptist Church

**AGENT:** Scott Catellier

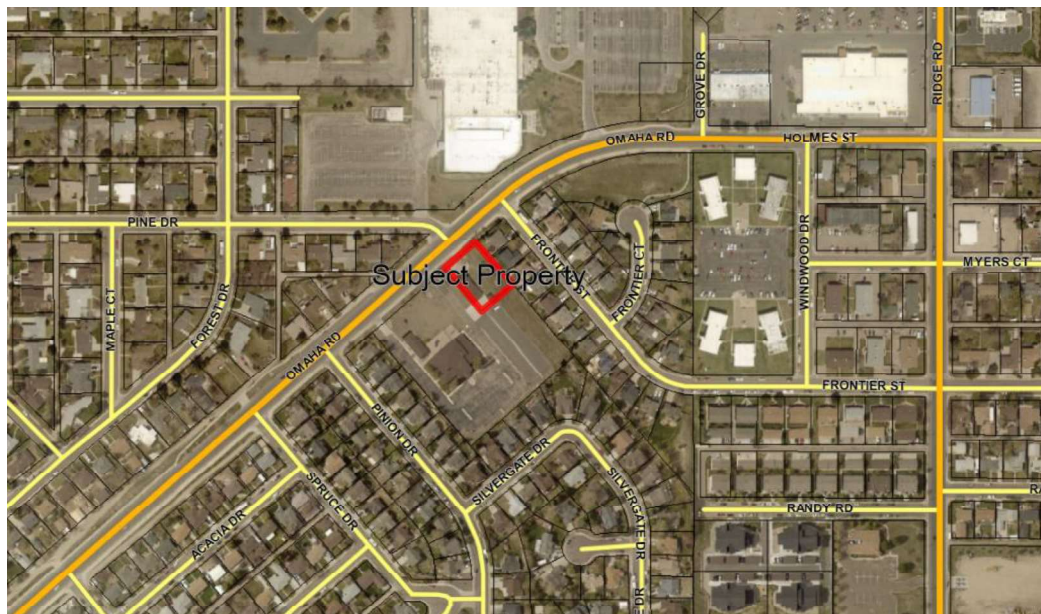
**OWNER:** Meadowbrook Baptist Church

**ZONING:** CB Community Business

**FUTURE LAND USE:** Urban Residential

**PURPOSE:** To allow the property to be used as a residence

**PREPARED BY:** Seth Lloyd, Planner II - Development



**RECOMMENDED MOTION:**

Move to **approve** the rezoning of Lot1, Block1, Potter Addition to MR Medium-density Residential as shown in the attached zone change map, noting that the project meets the review criteria for approval.

**APPLICABLE CITY CODE SECTION(S) AND PLANS:**

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

**BACKGROUND:**

This zone change application proposes changing the zoning from CB Community Business to MR Medium-density Residential for 0.34 acres of land. The land is currently occupied by a structure (formerly used for business purpose). The property is anticipated to be reused for residential purposes.

**SURROUNDING LAND USE AND ZONING:**

|                     | <b>Future Land Use Designation</b>    | <b>Zoning District</b>                                        | <b>Land Use</b>                   |
|---------------------|---------------------------------------|---------------------------------------------------------------|-----------------------------------|
| <b>Subject Site</b> | Urban Residential                     | CB Community Business                                         | Existing structure                |
| <b>North</b>        | Urban Residential, Community Business | CB, MR Medium-density Residential, LR Low-density Residential | Office, Single-family residential |
| <b>South</b>        | Urban Residential                     | MR                                                            | Assembly                          |
| <b>East</b>         | Urban Residential                     | MR                                                            | Single-family residential         |
| <b>West</b>         | Urban Residential                     | LR                                                            | Single-family residential         |

**ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:**

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

**1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)**

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure. Plan Cheyenne also encourages infill development (although it is not the intent of the plan to change existing, stable neighborhoods).

The Future Land Use Designation for this property is Urban Residential. Areas to the west, east, and south are also designated Urban Residential.

According to comprehensive plan the optimal City zone for the subject property's future land use designation is any one of the more urban residential zone districts, including the MR zone. Urban residential areas are encouraged to develop with a variety of residential uses, and the zoning of this parcel would allow residential use.

Based on the policies and future land use map, MR zoning is appropriate at this location.

The proposed zone change **complies** with review criterion 1.

**2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)**

Surrounding property to the east and south are currently zoned with the MR zone designation. Property to the west (across Omaha) is zoned LR. This proposed zone change would allow this parcel to match adjacent property. These surrounding parcels are also designated urban residential by the future land use map in PlanCheyenne, anticipating the continuation of residential uses.

The property to the north is diagonally off of the site and zoned CB and is developed for commercial use. The proposed MR zone would not present an undue influence on this property (especially as there are other properties closer to this CB parcel zoned for residential use.

The proposed zone change for the subject property **complies** with review criterion 2.

**3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)**

The property is currently zoned CB, which requires a landscape buffer to adjacent residential zones. Were this property to redevelop in the CB zone, a significant portion of the site would be constrained by the required buffers. The CB zone is intended to develop with largely commercial uses, although limited multi-family residential is also possible. The MR zone mostly allows residential uses – though some small-scale, low-intensity non-residential uses are also applicable. Due to location, it appears probable the property is more suited to residential development.

The proposed zone change **complies** with review criterion 3.

**4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)**

The zone change is occurring in a pre-existing MR-zoned neighborhood. The block is much too large to meet the standards for residential development, but there are no real options to create meaningful street network connections. No additions to the street network are proposed.

Omaha is a major road and it appears there may be a curb cut directly to the property. This may need to be reviewed, as it appears there is potential to access the parcel from the neighboring property (and both parcels are currently under the same ownership).

Infrastructure (streets and utilities) exist in the area.

The proposed zone change for the subject property **complies** with review criterion 4.

**5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)**

The MR zone is intended for a mix of residential uses in a more urban environment. The area around the parcel to the south and west is already zoned MR and is largely compatible with the intent and applicability statements of the MR zone. MR zoning is anticipated to meet the design standards of Section 6.6 of the UDC. Any redevelopment of this property should be able to meet these standards.

The proposed zone change for the subject property **complies** with review criterion 5.

**6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)**

The specific development proposed in concert with this rezoning is the repurposing of the existing structure for a single-family residence. Should the proposed development not be executed after approval, there are also a number of residential uses which would be eligible to be established at this location. Also, the MR zone would still allow some limited commercial uses (such as a small law office).

The proposed zone change **complies** with review criterion 6.

**7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)**

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

**8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)**

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

**CONFORMANCE WITH APPLICABLE PLANS:**

---

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

**STAFF REVIEW:**

---

Through the review process, review comments were received expressing the appropriateness of the MR zone at this location.

**CONCLUSION:**

---

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The MR zone is appropriate based on the future land use map, surrounding zoning, and surrounding development patterns.

**ALTERNATIVES:**

---

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

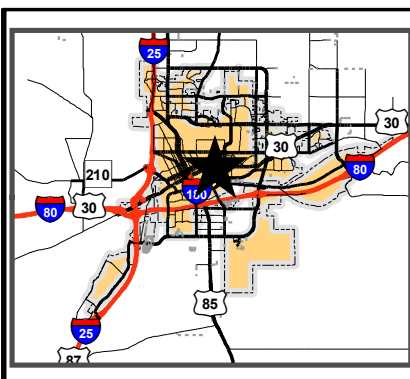
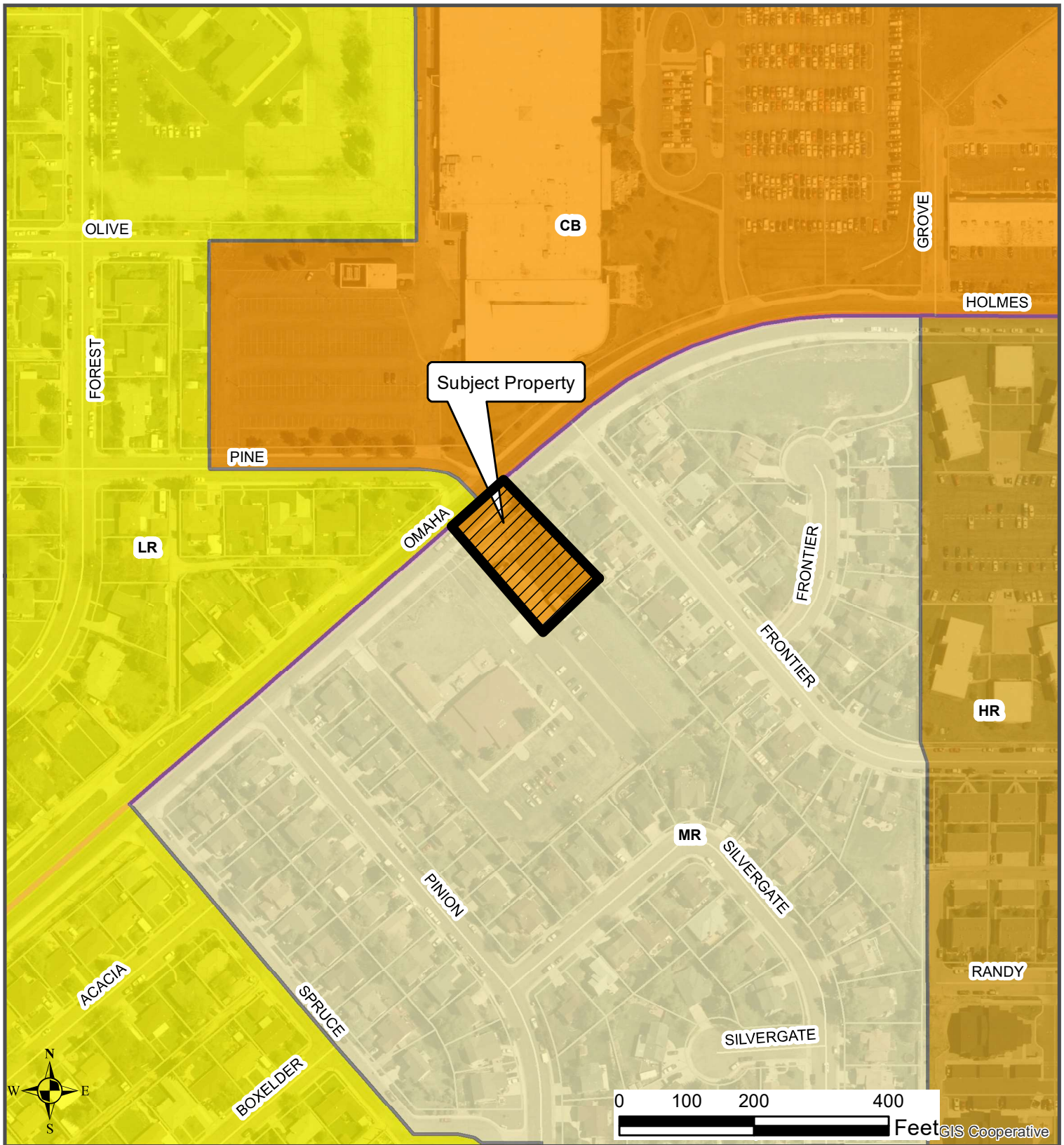
**STAFF RECOMMENDATION:**

---

Staff recommends approval of the rezoning of the property from CB to MR.

**ATTACHMENTS:**

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Maps

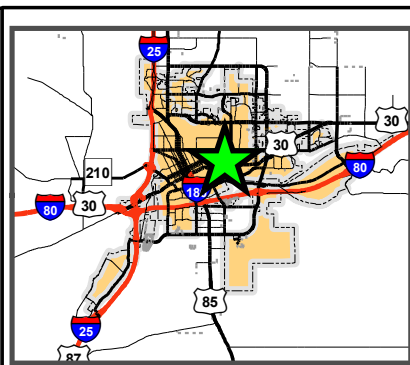
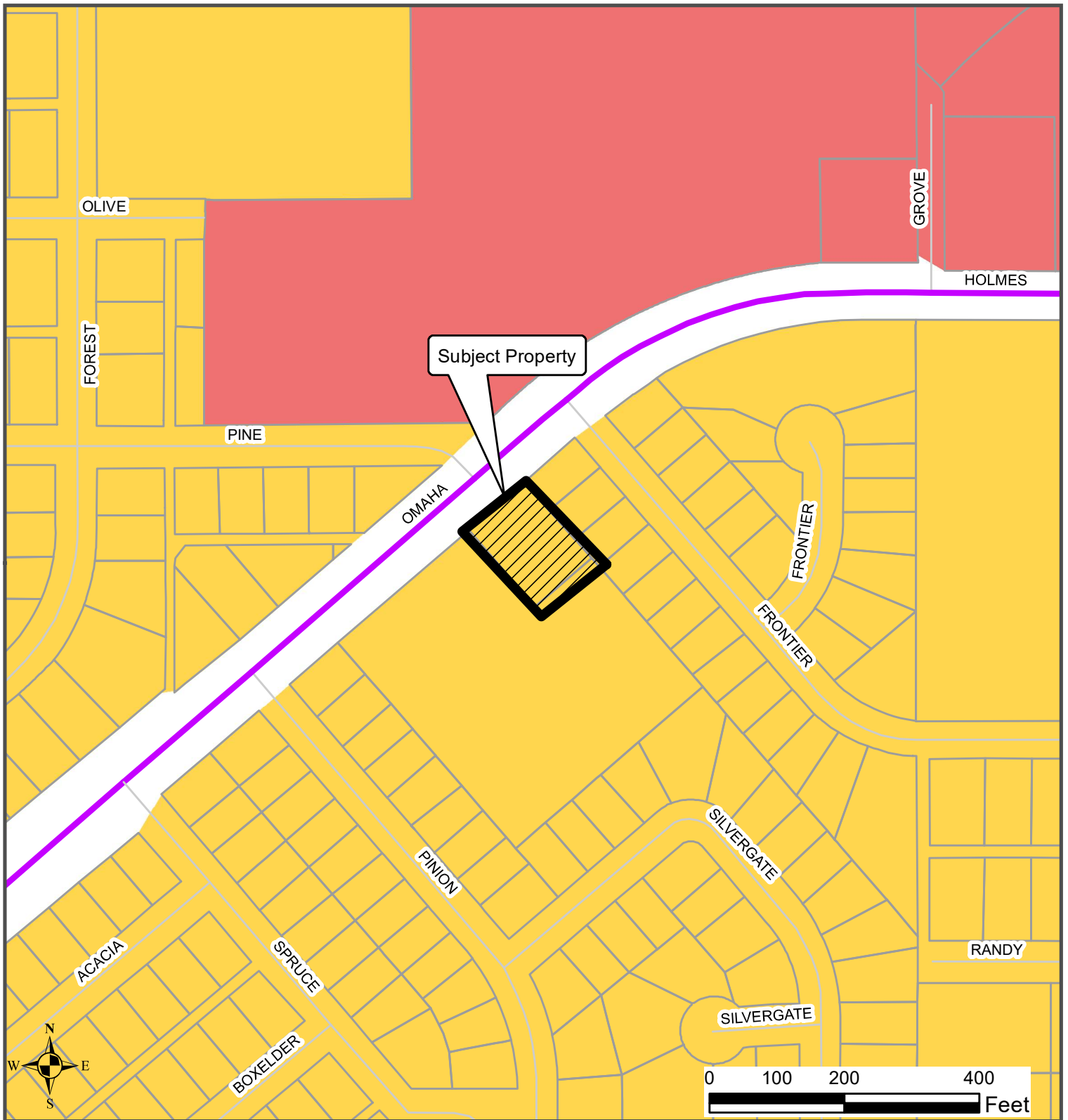


## Attachment 1: Zoning Map UDC-22-00131

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

### Legend

|  |                                                |  |                                          |
|--|------------------------------------------------|--|------------------------------------------|
|  | Nov19_CityLimits                               |  | A-1 / Agricultural and Rural Residential |
|  | Interstate                                     |  | A-2 / Agricultural                       |
|  | Principal Arterial                             |  | AG / City Agricultural                   |
|  | Minor Arterial                                 |  | MUR / Mixed Use Residential Emphasis     |
|  | Major Collector                                |  | CBD / Central Business District          |
|  | Minor Collector                                |  | CB / Community Business                  |
|  | Local                                          |  | NB / Neighborhood Business               |
|  | Private                                        |  | MU / Mixed Use - County                  |
|  | Platted not built                              |  | MUB / Mixed Use Business Emphasis        |
|  | HR / High Density Residential                  |  | MUE / Mixed Use Employment Emphasis      |
|  | MR / Medium Density Residential                |  | HI / Heavy Industrial                    |
|  | LR / Low Density Residential                   |  | LI / Light Industrial                    |
|  | NR-2 / Neighborhood Residential - Med. Density |  | P / Public                               |
|  | NR-3 / Neighborhood Residential - High Density |  | AD / Airport District                    |
|  | AR / Agricultural Residential                  |  | PUD / Planned Unit Development           |
|  |                                                |  | X / Exempt                               |



## Attachment 2: Land Use Map UDC-22-00131

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

### Legend

|                    |                              |                           |
|--------------------|------------------------------|---------------------------|
| Nov19_CityLimits   | Agricultural/Rural           | Industrial                |
| Interstate         | Rural Residential            | Central Business District |
| Principal Arterial | Urban Transition Residential | Community Business        |
| Minor Arterial     | Urban Residential            | Public and Quasi-Public   |
| Major Collector    | Mixed-Use Residential        | Military/Federal          |
| Minor Collector    | Mixed-Use Commercial         | Open Space and Parks      |
| Local              | Mixed-Use Employment         |                           |
| Private            |                              |                           |
| Platted not built  |                              |                           |
| Ownership          |                              |                           |

# Planning and Development: Zoning Map Amendment Application

Submission date: **30 March 2022, 6:26PM**  
Receipt number: **32**  
Related form version: **10**

## General Information

|                          |                                 |
|--------------------------|---------------------------------|
| Applicant Name:          | Meadowbrooke Church             |
| Applicant Address:       | 3161 Omaha Road                 |
| Applicant City:          | Cheyenne                        |
| Applicant State:         | Wyoming                         |
| Applicant Zip Code:      | 82001                           |
| Applicant Phone:         | 307.778.8709                    |
| Applicant Email          | office@meadowbrooke.org         |
| Representative Name:     | Scott Catellier                 |
| Representative Address:  | 802 Shadow Mountain Trail       |
| Representative City:     | Cheyenne                        |
| Representative State:    | wyoming                         |
| Representative Zip Code: | 82009                           |
| Representative Phone:    | 307.214.7516                    |
| Representative Email:    | scott.catellier@iscbuilders.net |
| Owner Name:              | Meadowbrooke Church             |
| Owner Address:           | 3161 Omaha Road                 |

|                                                        |                                                               |
|--------------------------------------------------------|---------------------------------------------------------------|
| Owner City:                                            | Cheyenne                                                      |
| Owner State:                                           | Wyoming                                                       |
| Owner Zip Code:                                        | 82001                                                         |
| Owner Phone:                                           | 307.778.8709                                                  |
| Owner Email:                                           | office@meadowbrooke.org                                       |
| Who is the primary contact regarding this application? | Representative                                                |
| Letter of Authorization                                | <a href="#">Meadowbrooke Signed Authorization Letter .pdf</a> |
| Project Location (Street Address or General Location): | 3173 Omaha Road                                               |
| Assessor's Parcel ID number(s)                         |                                                               |
| Total Project Area                                     | .34 acres 15,000 square feet                                  |
| Existing Zoning                                        | CB - Community Business                                       |
| Requested Zoning                                       | MR - Medium-density Residential                               |

## Application-Specific Questions

|                                    |                                                                                                                                                                                   |
|------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Written Statement                  | Please describe your proposal here: We would like to change this building from CB to MR to match the rest of the property so we can change this building into a future residence. |
| Zoning Map                         | <a href="#">3173 Omaha Road Map.pdf</a><br><a href="#">Laramie County, Wyoming, MapServer.pdf</a>                                                                                 |
| Notification Letter                | <a href="#">Meadowbrooke Church draft neighbor notification letter.docx</a><br><a href="#">Owner Contact List.xls</a><br><a href="#">Owner Contact List.pdf</a>                   |
| Supporting Documents / Information | <a href="#">Laramie County, Wyoming, MapServer.pdf</a>                                                                                                                            |

## Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.

**Acknowledgement of this review criteria**

The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

**Acknowledgement of this review criteria**

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

**Acknowledgement of this review criteria**

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

**Acknowledgement of this review criteria**

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

**Acknowledgement of this review criteria**

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

**Acknowledgement of this review criteria**

The review and recommendations of other reviewing bodies

**Acknowledgement of this review criteria**

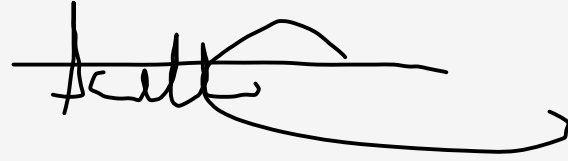
Whether the application will harm the public health, safety, or general welfare.

**Acknowledgement of this review criteria**

**Signature / Certification**

Applicant Signature

Name of signatory: **Scott Catellier**

A handwritten signature in black ink, appearing to read 'Scott Catellier', written over a horizontal line.

[Link to signature](#)

Please enter an email address for an email receipt.

**scott.catellier@iscbuilders.net**

Laramie County Wyoming MapServer

